

Evidence on the part of a child. — On the other hand, the son may produce parol evidence to prove the intention of advancement (*c*), and *à fortiori* such evidence is admissible on his side, as it tends to support both the legal operation and equitable presumption of the instrument (*d*). And it seems the subsequent acts and declarations of the father may be used *against* him by the son, though they cannot be used *in his favour* (*e*), and so the subsequent acts or declarations of the son may be used against *him* by the father, provided he was a party to the purchase, and his construction of the transaction may be taken as an index to the intention of the father (*f*); but not otherwise, for the question is, not what did the son, but what did the father mean by the purchase?

[Where the parties to the transaction are alive and give evidence, there is no occasion to resort to any presumption (*g*).]

9. **Rule not to be eluded by nice refinements.** — From the manner in which the Court has disposed of the several distinctions we have been considering, one general principle is to be extracted applicable to every case. “We think,” said Chief Baron Eyre, “that reasons which partake of too great a degree of refinement should not prevail against a rule of property, which is so well established as to become a land mark, and which, whether right or wrong, should be [*177] carried throughout” (*h*); and Lord Eldon *to the same effect observed, “that the Court in *Dyer v. Dyer* meant to establish this principle, that the purchase is an advancement *prima facie*, and in this sense, that this principle of law and presumption is not to be frittered away by mere refinements” (*a*).

(*c*) *Taylor v. Alston*, cited 2 Cox, 96, 1 Watk. Cop. 223; *Beckford v. Beckford*, Lofft, 490.

(*d*) See *Taylor v. Taylor*, 1 Atk. 386; *Lamplugh v. Lamplugh*, 1 P. W. 113; *Redington v. Redington*, 3 Ridg. 182, 195.

(*e*) See *Redington v. Redington*, 3 Ridg. 195, 197; *Sidmouth v. Sidmouth*, 2 Beav. 455; *Stock v. McAvoy*, 15 L. R. Eq. 55.

(*f*) See *Murless v. Franklin*, 1 Sw. 20; *Pole v. Pole*, 1 Ves. 76; *Sidmouth v. Sidmouth*, 2 Beav. 455; *Scawin v. Scawin*, 1 Y. & C. C. C. 65; *Jeans v. Cooke*, 24 Beav. 521.

(*g*) *Per* Lindley, L. J., *Ex parte Cooper*, W. N. 1882, p. 96.]

(*h*) 2 Cox, 98; 1 Watk. Cop. 226.

(*a*) *Finch v. Finch*, 15 Ves. 50.